

20STCV31478 20STCV31478

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MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Progress Place v. Eva Cepeida, Los Angeles County Superior Court case number 20STCV31478, set for hearing on July 27, 2026. Jose Rivera, et al. (collectively, Plaintiffs) move for an order compelling Eva Cepeida (Defendant) to comply with the statements of compliance she served but did not honor. Plaintiffs also seek monetary, evidence, and issue sanctions. Defendant opposes the motion. The motion is granted in part.

A.

Legal Standard

"If a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).) The Court shall impose a monetary sanction against "any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Id., § 2031.320, subd. (b).) If a party then fails to obey an order compelling compliance, issue, evidence, or terminating sanctions may be imposed. (Id., § 2031.320, subd. (c).)

"For discovery purposes, information is

relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.'

[Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery." (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) "[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities." (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a "more limited scope of discovery available from nonparties." (Ibid.)

B. Discussion

Plaintiffs contend that Defendant has disregarded this Court's order in failing to provide certain discovery. On October 28, 2025, this Court compelled Defendant to provide responses to Plaintiffs' requests for production, set one (RFPs) and imposed monetary sanctions in the amount of \$660. On June 1, 2026, the Court imposed further monetary sanctions on Defendant in the amount of \$5,660 because Defendant failed to provide responses as required or pay the previous sanctions. In making this order, the Court found that Defendant still possessed the ability to comply with certain discovery demands by seeking out documents from third-parties.

Plaintiffs argue that Defendant has still failed to produce the required documents. Moreover, they assert that Defendant's opposition is untimely and that her declaration is unsigned and inadmissible. The Court previously denied Defendant's ex-parte application to continue this hearing, stating that it would consider a late opposition upon a showing of good cause. Defendant's opposition is indeed late by 5 court days. And Defendant's declarations are unsigned and fail to explain the untimeliness or her briefing on this matter. Thus, the Court declines to consider Defendant's late opposition or unsigned declarations. In any event, Plaintiff has established a basis to conclude that prior representations are false. For example, the Cruz Group payments over 14 months were explained as a payment for a one month tenancy, which does not appear to be correct. There are numerous other examples offered by Plaintiff in his Reply Brief. Indeed, it appears that Defendant used Artificial Intelligence to draft the opposition as there are passages in the Opposition which contain guidance to counsel on how to

frame the issues. The reliance on A.I. may explain the absence of satisfactory explanations for the errors and inconsistencies in the discovery responses. Accordingly, Plaintiffs' motion is granted.

With respect to the specific sanctions to be imposed, the Court notes that evidence, issue, and terminating sanctions are only available when an order pursuant to Code of Civil Procedure section 2031.320 is violated. (Code Civ. Proc., § 2031.320, subd. (c).) Thus, the Court is only empowered to impose further monetary sanctions at this time, as Defendant has not disobeyed a previous order compelling compliance and has only failed to comply with an order to compel initial discovery. The Court credits counsel's hourly rate of \$800. (Biggins Decl. ¶ 13.) However, given counsel's claimed experience, the Court finds the 28 hours claimed with respect to the present motion and reply to be excessive. (Ibid.) Instead, the Court credits counsel with 5 hours for drafting the present motion, 2 hours for reviewing Defendant's opposition and drafting the reply, and 1 hour for attending the hearing on this matter, along with an additional \$60 filing fee. Accordingly, \$6,460 in sanctions are imposed on Defendant's counsel ($[\$800 \text{ per hour}] \times [8 \text{ hours}] + [\$60 \text{ filing fee}] = \$6,460$).

Conclusion:

The Court grants Plaintiffs' motion to compel compliance and imposes \$6,460 on Defendant's counsel. Sanctions to be paid within 30 days.